Legal advice: non-conformity of an e-bike

To: Ms J. Bakker **From:** Daan, Utrecht Law Clinic **Date:** 10 November 2026

1. Facts

On 3 April 2026, Ms Bakker bought a new e-bike from Fietsenwinkel De Spaak B.V. for €2,499. She uses the bike daily to commute, about 12 kilometres each way. In early November 2026 the battery stopped charging. Ms Bakker reported this orally in the shop on 6 November. The shop says the six-month manufacturer's warranty has expired and refers her to the manufacturer.

2. Legal question

Can Ms Bakker hold De Spaak liable for non-conformity under Dutch law, and which remedies can she invoke?

3. Legal framework

This is a **consumer sale** within the meaning of Article 7:5(1) of the Dutch Civil Code (DCC): Ms Bakker is not acting in the course of a profession or business, De Spaak is. The rules of Title 7.1 DCC are therefore largely mandatory (Article 7:6(1) DCC).

- **Conformity.** The goods delivered must conform to the contract (Article 7:17(1) DCC). They must have the characteristics the buyer was entitled to expect under the contract, including for normal use (Article 7:17(2) DCC).
- **Presumption.** In a consumer sale, a defect that becomes apparent within one year of delivery is presumed to have existed at delivery, unless this is incompatible with the nature of the goods or the defect (Article 7:18(2) DCC). This period was extended from six months to one year on 1 January 2022, implementing Directive (EU) 2019/771.
- **Duty to give notice.** The buyer must give notice within a reasonable time after discovery (Article 7:23(1) DCC). In a consumer sale, notice within two months of discovery is in any event timely. The Dutch Supreme Court has also held that the duty to give notice must not be applied strictly to consumers (HR 23 November 2007, Ploum/Smeets).
- **Remedies.** The buyer may claim repair or replacement free of charge (Article 7:21 DCC), and under certain conditions terminate the contract or claim a price reduction (Article 7:22 DCC).
- **Warranty.** A warranty does not affect the consumer's statutory rights (Article 7:6a DCC).
- **Ex officio review.** The Court of Justice has held that national courts must examine of their own motion whether the buyer is a consumer and whether consumer protection rules apply (CJEU 4 June 2015, C-497/13, Faber).

4. Analysis

Non-conformity. With normal use, a buyer may expect the battery of a new €2,499 e-bike to last several years. A battery that stops charging after seven months does not meet what Ms Bakker was entitled to expect. The e-bike therefore does not conform within the meaning of Article 7:17(2) DCC.

Burden of proof. The defect became apparent seven months after delivery, within the one-year period. The presumption of Article 7:18(2) DCC applies: the defect is presumed to have existed at delivery. It is for De Spaak to prove that the defect was caused by, for example, improper use. There is no indication of this.

Notice. Ms Bakker gave notice within days of discovery, well within the two-month period. However, notice was given orally; for evidential reasons it would be wise to confirm it in writing.

Who to address. The contract of sale was concluded with De Spaak. The referral to the manufacturer and the expiry of the manufacturer's warranty do not affect her rights against the seller (Article 7:6a DCC).

Remedy. As the e-bike does not conform, Ms Bakker can terminate the contract under Article 7:22 DCC and reclaim the purchase price of €2,499. She does not have to give De Spaak the opportunity to repair or replace the battery first: in a consumer sale, the consumer can always opt for termination straight away in the event of non-conformity.

5. Conclusion and advice

Ms Bakker can hold De Spaak liable for non-conformity. The presumption works in her favour and she gave timely notice. I advise her to:

1. send De Spaak a formal notice of default by registered letter, referring to Articles 7:17, 7:18(2) and 7:6a DCC;
2. in the same letter, terminate the contract and claim repayment of €2,499 within fourteen days;
3. if De Spaak refuses, submit the matter to the Geschillencommissie Tweewielers (the Dutch disputes committee for bicycles) or to the subdistrict court.